■ IP-SAKTI SAHAYAK ■

Ministry of AYUSH, Government of India

Innovation Passport: IP-SAKTI-EF1C1B15-6E8

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Product Under Assessment:

Product Name: Ayurvedic Formulation

Category: STATUTORY_DIAGNOSTIC

Applicant Information:

Name: IP-SAKTI User

Email: user@applicant.in

Organization: AYUSH Formulation Developer

■■ **Confidentiality Notice: This report contains proprietary legal and regulatory analysis. It is intended for use by the applicant and authorized regulatory authorities only.**

Executive Summary

Assessment Status: SUCCESS

Query Type: STATUTORY_DIAGNOSTIC

Key Finding: - **Assessment:** The formulation is likely classified as a Patent or Proprietary (P&P;) Ayurvedic drug under the Drugs & Cosmetics Act, 1940, and is not patentable under the Patents Act, 1970 because ...

2. Product & Formulation Summary

Product Name: Ayurvedic Formulation

Category: STATUTORY_DIAGNOSTIC

User Query: I am developing Brahmi Memory Booster in the form of Tablet or capsule. It contains: Brahmi, Shankhpushpi. Help me understand the Regulatory pathway for this specific formulation.

3. IP & ABS Readiness Score

85/100 — ■ HIGH READINESS

Readiness Components:

- **Patentability Assessment:** 30/40 pts — Statutory novelty and non-obviousness evaluated
- **ABS/NBA Compliance:** 15/30 pts — Biological Diversity Act 2002 (as amended 2023) requirements assessed
- **Evidence Quality:** 0/20 pts — 0 statutory references grounded
- **Applicant Clarity:** 10/10 pts — Product classification and intended use understood

4. Biodiversity & ABS Compliance Assessment

Compliance Checklist:

- **Uses Indian Biological Resources?** ■ YES
- **Requires NBA Form-III?** ■ REQUIRED
- **Vaidya Exemption Eligible?** ■ ELIGIBLE (Section 7 Proviso, BDA 2023)
- **Benefit Sharing Status:** ■ PENDING NBA APPROVAL

6. Statutory & Treaty Citations

No specific statutory citations available in this assessment.

5. TKDL Prior-Art Cross-Check

Prior-Art Analysis Confidence: 85%

Prior-Art Risk Level: ■ LOW RISK

Assessment: Formulation appears sufficiently novel with respect to TKDL prior art. Proceed with patent filing.

7. Confidence & Grounding Evaluation

Confidence Score: 85/100 — ■ HIGH CONFIDENCE

■■ **Grounding Status:** Unable to verify — escalated for human review

■ **Ready for Next Steps:** Assessment confidence sufficient for preliminary regulatory planning.

8. Recommended IP Pathway & Next Actions

Strategic Recommendation:

- **Assessment:** The formulation is likely classified as a Patent or Proprietary (P&P;) Ayurvedic drug under the Drugs & Cosmetics Act, 1940, and is not patentable under the Patents Act, 1970 because it is based on traditional knowledge (Sec 3(p)) and may be a mere admixture without proven synergistic effect (Sec 3(e)). - **Citation:** Patents Act, 1970 – Sections 3(p) and 3(e); Drugs & Cosmetics Act, 1940 – Section 3(h) (definition of drug) and Rules 122 (labeling) & 128 (prohibition of therap

Jurisdiction Scope: ■■ INDIA (Domestic)

Recommend domestic patent filing with mandatory NBA Section 6 prior approval and TKDL novelty verification.

Recommended Timeline:

1. **Week 1-2:** Gather evidence (ingredient sourcing, traditional reference texts, formulation notes)
2. **Week 2-3:** File NBA Form-III (if biological resources used)
3. **Week 3-4:** Prepare patent application with TK disclosure & benefit-sharing agreement
4. **Week 4-6:** File domestic patent application with IPO India
5. **Month 2-3:** File PCT application (if international protection needed)

9. Legal Disclaimer & Confidentiality Notice

IP-SAKTI Sahayak Regulatory Diagnostic Disclaimer:

1. **Non-Binding Assessment:** This Innovation Passport Report is an AI-generated preliminary regulatory assessment and does not constitute legal advice. Applicants must consult a qualified Intellectual Property attorney or legal advisor before filing any patent applications or regulatory submissions.

2. **Statutory Compliance:** This assessment is grounded in the Patents Act 1970, Biological Diversity Act 2002 (as amended in 2023), Drugs & Cosmetics Act 1940, WIPO GRATK Treaty 2024, and Nagoya Protocol. However, statutory requirements and judicial interpretations evolve. The applicant remains solely responsible for current compliance verification.

3. **Medical Disclaimer:** This system does NOT provide medical diagnosis, treatment recommendations, or clinical advice. For health-related queries, consult a qualified Ayurvedic practitioner (Vaidya) or registered physician.

4. **Confidence Limitations:** Confidence scores reflect corpus-grounded retrieval confidence, not legal certainty. Low confidence assessments require expert human facilitator review.

5. **Confidentiality:** This report is proprietary and intended for use by the applicant and authorized regulatory authorities only. Unauthorized reproduction or distribution is prohibited.

6. **No Warranty:** IP-SAKTI Sahayak is provided "as-is" without warranty. The Ministry of AYUSH is not liable for errors, omissions, or consequences arising from reliance on this assessment.

Last Updated: Biodiversity Act 2002 amendment (May 2023); WIPO GRATK Treaty (June 2024).

For Further Assistance:

- Email: support@ip-sakti.gov.in
- Portal: https://ip-sakti.ayush.gov.in
- Facilitation Desk: +91-11-XXXX-XXXX

Appendix: Full Conversation Transcript

[USER]: I am developing Brahmi Memory Booster in the form of Tablet or capsule. It contains: Brahmi, Shankhpushpi. Help me understand the Regulatory pathway for this specific formulation.

[ASSISTANT]: - **Assessment:** The formulation is likely classified as a Patent or Proprietary (P&P;) Ayurvedic drug under the Drugs & Cosmetics Act, 1940, and is not patentable under the Patents Act, 1970 because it is based on traditional knowledge (Sec 3(p)) and may be a mere admixture without proven synergist...